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B

July 1, 1953

B COMMENTS ON THE FINAL REPORT OF _____ ON
RESEARCH ON SIDE TONE DELAY AS AN INTERROGATION DEVICE

The comments given here cover some of the background and several aspects of the results of the research which appear to merit further consideration.

The possible use of side tone delay in interrogation procedures was C conceived by the undersigned while employed in the _____ during the early months of 1951. Preliminary contacts were B made with two _____ laboratories to explore the possibility of a C coordinated investigation of the matter. _____ expressed interest and demonstrated in the discussion his understanding of scientific methods, techniques, etc. We thereupon performed preliminary experiments and subsequently obtained support for the investigation.

Because of the uncertain status of the undersigned arising from his C employment in the _____ and, furthermore, the imminence of a leave of absence to enter into another research contract, C the prime contract was undertaken by _____ with the work of the undersigned carried out by means of a subcontract.

The objectives of the program as laid out in a meeting of the supporting agency with the investigators covered the following:

1. Research to determine the conditions, if any, under which side tone delay could be utilized to advantage in interrogation.

2. An investigation of the possibility of concurrent use of side tone delay with the polygraph in a feed-back arrangement.

3. The development of a side tone delay method not requiring attachments to the subject.

C _____ final report contains one objective conclusion that the side tone will not produce false confessions. Otherwise, the report consists of several opinions which cannot be considered substantiated in a satisfactory manner. The report does not demonstrate an understanding of the fundamental difference between a research and development project on the one hand and a project for field testing a developed instrument on the other hand.

The conclusions reached in an analysis of the ten cases described from page 19 to page 27 fall into one of two categories depending upon whether a confession was or was not obtained; "the STD did not help

to improve the polygraph records, nor did it help to gain a confession" when the subject did not confess, or "the interrogator believed that _____ would have confessed without the STD" when the subject did confess. These conclusions are not objective.

With respect to the _____ apparatus requiring no subject attachment, _____ had no experimental basis for the statement on page 33 that "it is believed that this arrangement will not help to obtain confessions."

The most serious defect in the experimental work was that the investigators did not clearly recognize what is perhaps the outstanding single observation of their work -- that they were gaining an effect in those cases where no stuttering existed. Recognition of this fact should have led to an investigation of delay times in every case below those necessary to produce stuttering. It is presumably not necessary to block completely the subject's speech in order to subject him to mental difficulty. Clearly, the optimum amount of delay is that required to produce a more or less unformulated thought within the mind of the subject that he is betraying the fact that he is lying. When a subject remarks "Stop trying to fool me with this," the desired threshold obviously has been overstepped seriously.

It is the belief of the undersigned that much remains to be done on the subject and that no conclusive statement on the degree of utility of side tone delay can be made at this time.

[redacted]